

24TRCV03084 24TRCV03084

County: los-angeles

Division: Civil Law and Motion

Department: 5

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Case Number: 24TRCV03084 Hearing Date: August 26, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

JIMMY LEE JACKSON JR.

;

Plaintiff,

vs.

FCA US, LLC

;

Defendant.

Case

No.:

24TRCV03084

Hearing

Date:

August

26, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT

FCA US, LLC'S MOTION TO COMPEL PLAINTIFF JIMMY LEE JACKSON JR. TO PROVIDE FURTHER
RESPONSES, WITHOUT OBJECTIONS, TO DEFENDANT'S FORM INTERROGATORIES

(2)

DEFENDANT

FCA US, LLC'S MOTION TO COMPEL PLAINTIFF JIMMY LEE JACKSON JR. TO PROVIDE FURTHER
RESPONSES TO DEFENDANT'S FORM INTERROGATORIES

(3)

DEFENDANT

FCA US, LLC'S REQUESTS FOR MONETARY SANCTIONS

MOVING PARTY: Defendant,

FCA US, LLC

RESPONDING

PARTY: No

opposition.

(1)

Defendant

FCA US, LLC's Motion to Compel Plaintiff Jimmy Lee Jackson Jr. to Provide

Further Responses, without Objections, to Defendant's Form Interrogatories is DENIED

to Code of Civil Procedure section 2030.300, subdivision (b)(1).

(2)

Defendant

FCA US, LLC's Motion to Compel Plaintiff Jimmy Lee Jackson Jr. to Provide

Further Responses to Defendant's Special Interrogatories is DENIED to Code of

Civil Procedure section 2030.300, subdivision (b)(1).

(3)

Defendant

FCA US, LLC's Requests for Monetary Sanctions are DENIED pursuant to Code of

Civil Procedure section 2030.300, subdivision (b)(1).

The Court considers the moving papers filed on

June 30, 2026. To date, no opposition

brief has been filed.

BACKGROUND

Factual Background

On September 16, 2024, plaintiff Jimmy Lee Jackson Jr. ("Plaintiff") filed the Complaint against defendants FCA US, LLC ("Defendant") and DOES 1 through

10. The Complaint includes the following

causes of action: (1) Violation of Subdivision (D) of Civil Code Section 1793.2; (2) Violation of Subdivision (B) of Civil Code Section 1793.2; (3) Violation of Subdivision (A)(3) of Civil Code Section 1793.2; (4) Breach of the Implied Warranty of Merchantability (Civ. Code, §§ 1791.1, 1794, 1795.5); and (5) Fraudulent Inducement – Concealment.

On November 7, 2024, Defendant propounded Form Interrogatories, Set One, and Special Interrogatories, Set One, on Plaintiff. (Declaration of Samantha M. Geraghty re: FROG ("FROG Geraghty Decl."), ¶ 3, Exh. B; Declaration of Samantha M. Geraghty re: SROG ("SROG Geraghty Decl."), ¶ 3, Exh. B.)

On December 10, 2024, Plaintiff served responses that were composed entirely of objections. (FROG Geraghty Decl., ¶ 4, Exh. C; SROG Geraghty Decl., ¶ 4, Exh. C.)

On May 5, 2025, Defendant's counsel sent a meet-and-confer letter to address the deficiencies in Plaintiff's responses. (FROG Geraghty Decl., ¶ 5, Exh. D; SROG Geraghty

Decl., ¶ 5, Exh. D.) However, Plaintiff

failed to respond to this correspondence or to provide any supplemental

responses. (FROG Geraghty Decl., ¶¶ 6-7;

SROG Geraghty Decl., ¶¶ 6-7.)

On May 26, 2026, the Court signed the Stipulation and Protective Order –

Confidential Designation Only.

On July 30, 2026, Plaintiff's counsel filed a motion to be relieved as

counsel. On August 20, 2026, Plaintiff's

counsel filed the Ex Parte Application to Advance the Hearing on Motion to Be

Relieved as Counsel, or, Alternatively, for an Order Enforcing Motion to Be

Relieved as Counsel.

On August 24, 2026, the Court granted the ex parte application, advancing

the hearing on the motion to the same day. The Court subsequently granted the motion to

be relieved as counsel. Consequently,

Plaintiff is now self-represented.

LEGAL STANDARD

Code of Civil Procedure

section 2030.300 provides that "[o]n receipt of a response to interrogatories,

the propounding party may move for an order compelling a further response if

the propounding party deems that" the responses contain: (1) answers that are

evasive or incomplete; (2) an unwarranted or insufficiently specific exercise of an option to produce documents in lieu of a substantive response; or (3) unmerited or overly generalized objections.

(Code Civ. Proc., §2030.300, subd. (a).) “[N]otice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response to the interrogatories.” (Code Civ. Proc., §2030.300, subd.

(c).) Moreover, “[a] motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc.,

§2030.300, subd. (b)(1).)

Additionally, “Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code of Civ. Proc., § 2017.010.) For

discovery purposes, information is regarded as relevant “if it might reasonably

assist a party in evaluating the case, preparing for trial, or facilitating

settlement thereof.” (City of Los

Angeles v. Superior Court (2017) 9 Cal.App.5th 272, 288.)

“The court shall impose a

monetary sanction under Chapter 7 (commencing with Section 2023.010) against

any party, person, or attorney who unsuccessfully makes or opposes a motion to

compel a further response to interrogatories, unless it finds that the one

subject to the sanction acted with substantial justification or that other

circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §2030.300, subd. (d).)

Under Code of Civil Procedure

section 2023.030, subdivision (a), “The court may impose a monetary sanction

ordering that one engaging in the misuse of the discovery process, or any

attorney advising that conduct, or both pay the reasonable expenses, including

attorney’s fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one

unsuccessfully asserting that another has engaged in the misuse of the

discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any

provision of this title, the court shall impose that sanction unless it finds

that the one subject to the sanction acted with substantial justification or

that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2023.030, subd.

(a.) "Misuses of the discovery process

include ... (d) Failing to respond or to submit to an authorized method of

discovery. (h) Making or opposing, unsuccessfully and

without substantial justification, a motion to compel or to limit discovery." (Code Civ. Proc., § 2023.010, subds. (d),

(h).)

"The court may award sanctions under the Discovery Act in favor of a

party who files a motion to compel discovery, even though no opposition to the

motion was filed, or opposition to the motion was withdrawn, or the requested

discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, rule 3.1348(a).)

MEET AND CONFER REQUIREMENT

Defendant must

meet and confer with Plaintiff before bringing these motions. (Code Civ. Proc., § 2030.300, subd. (b)(1).) Code of Civil Procedure section 2016.040

states that a meet and confer declaration "in support of a motion shall state

facts showing a reasonable and good faith attempt, either in person, by

telephone, or by videoconference, to informally resolve each issue presented by

the motion." (Code Civ. Proc., §

2016.040.) " 'The parties must present

to each other the merits of their respective positions with the same candor,

specificity and support during informal negotiations as during the briefing of

discovery motions. Only after all the

cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a 'sincere' effort to resolve the matter.' " (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1293-1294, quoting Townsend v. Superior Court (1998)

61 Cal.App.4th 1431, 1435.)

On November 7, 2024, Defendant

propounded Form Interrogatories, Set One, and Special Interrogatories, Set One,

on Plaintiff. (FROG Geraghty Decl., ¶ 3,

Exh. B; SROG Geraghty Decl., ¶ 3, Exh. B.)

On December 10, 2024, Plaintiff served responses that were composed

entirely of objections. (FROG Geraghty

Decl., ¶ 4, Exh. C; SROG Geraghty Decl., ¶ 4, Exh. C.)

On May 5, 2025, Defendant's

counsel sent a meet-and-confer letter to address the deficiencies in

Plaintiff's responses. (FROG Geraghty

Decl., ¶ 5, Exh. D; SROG Geraghty Decl., ¶ 5, Exh. D.) However, Plaintiff failed to respond to this

correspondence or to provide any supplemental responses. (FROG Geraghty Decl., ¶¶ 6-7; SROG Geraghty

Decl., ¶¶ 6-7.)

The Court finds that Defendant

did not adequately meet and confer in accordance with Code of Civil Procedure

section 2016.040. Defendant's counsel

failed to make an effort to meet in person, by telephone, or via video

conference to discuss the issues at hand. Instead, Defendant's counsel sent a singular

meet-and-confer letter, which the Court observes fails to address the

individual interrogatories or to provide a rationale as to why Plaintiff's

objections are meritless. (FROG Geraghty Decl., ¶ 5, Exh. D; SROG Geraghty

Decl., ¶ 5, Exh. D.) Consequently, the

Court does not consider this a sufficient attempt to meet and confer prior to

bringing these motions.

Accordingly, the Court DENIES

Defendant's motions to compel further responses and the accompanying requests

for sanctions.

ORDERS

1) Defendant

FCA US, LLC's Motion to Compel Plaintiff Jimmy Lee Jackson Jr. to Provide

Further Responses, without Objections, to Defendant's Form Interrogatories is

DENIED.

2) Defendant

FCA US, LLC's Motion to Compel Plaintiff Jimmy Lee Jackson Jr. to Provide

Further Responses to Defendant's Special Interrogatories is DENIED.

3) Defendant

FCA US, LLC's Requests for Monetary Sanctions are DENIED.

4) Defendant

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: August 26, 2026

Tamara

Hall

Judge

of the Superior Court